

Raj Bahadur v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 19 January 2021 · Writ-C No. 22388 of 2020 · **Writ disposed; billing dispute relegated to clause 6.5.**

HEADNOTE

A consumer disputing the correctness of an electricity bill and claiming adjustment of prior payments was relegated to the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005. The High Court accepted that Regulation 6.5 was the appropriate remedy, directed consideration in accordance with law preferably within six weeks, and disposed of the writ without deciding the bill on merits.

FACTUAL SUMMARY

Raj Bahadur petitioned the Allahabad High Court against the State of Uttar Pradesh and the Power Corporation, disputing the correctness of an electricity bill and claiming adjustment of prior payments. None appeared for him on 17 December 2020 even in the revised call, so the writ was listed as a fresh case. On 4 January 2021 the Court directed fresh service on Power Corporation counsel. On 19 January 2021 counsel for the petitioner, the Corporation and the State were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute

HOLDING

Where a consumer disputes the correctness of an electricity bill and claims adjustment of prior payments, the appropriate remedy is to approach the competent authority under Regulation 6.5 of the U.P. Electricity Supply Code, 2005, who shall consider the claim in accordance with law as expeditiously as possible, preferably within six weeks; the writ is disposed of on that footing without a merits decision on the bill. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ raising bill-correctness and prior-payment adjustment was disposed of by relegating the consumer to Regulation 6.5 rather than deciding the bill on the writ side. ¶ 3

clause-6.5-statutory-remedy-disputed-bill A dispute over correctness of an electricity bill, including claimed adjustment of prior payments, was treated as a Regulation 6.5 disputed-bill matter for the competent authority. ¶ 3

6.5-representation-as-appropriate-remedy The Power Corporation's statement that Regulation 6.5 was the appropriate remedy was accepted, and the Court directed that authority to consider the claim in accordance with law, preferably within six weeks. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND ENTITLEMENT TO ADJUSTMENT OF PRIOR PAYMENTS

Left to the competent authority under Regulation 6.5 to consider in accordance with law. ¶ 3